

Manu Goyal vs Smt. Aditi Goel on 18 July, 2017

Equivalent citations: AIR 2018 UTTARAKHAND 1

Bench: Rajiv Sharma, Sharad Kumar Sharma

IN THE HIGH COURT OF UTTARAKHAND
AT NAINITAL

First Appeal No. 29 of 2016
Manu Goyal S/o Sri Anand Kumar GoyalAppellant

Versus
Smt. Aditi Goel D/o Sri Ashok SinghalRespondent

Present:
Mr. Piyush Garg, Advocate for the appellant.
Mr. Lalit Sharma, Advocate for the respondent.

The Relief sought by the present appeal is to set aside/quash the impugned judgment and decree dated 5.3.2016 passed by Principal Judge Family Court, Dehradun in OS No. 350 of 2014, Manu Goel vs. Aditi Goel, whereby the petition filed by the appellant under section 7 and 25 of the Guardianship and Ward Act r/w Sections 6 & 13 of Hindu Minority and Guardianship Act has been dismissed and custody of minor child has been given to the respondent.

With
First Appeal No. 30 of 2016
Manu GoyalAppellant
Versus
Smt. Aditi Goel Respondent.
Present:
Mr. Piyush Garg, Advocate for the appellant.
Mr. Lalit Sharma, Advocate for the respondent.

The Relief sought by the present appeal is to set aside/quash the impugned judgment and decree dated 5.3.2016 passed by Principal Judge Family Court, Dehradun in OS No. 350 of 2014 Manu Goel vs. Aditi Goel, whereby counter claim filed by the appellant to the application filed by the respondent under Section 26 of the Hindu Marriage seeking permanent alimony has been dismissed and custody of minor child has been given to the respondent.

First Appeal No. 27 of 2016
Manu Goyal S/o Sri Anand Kumar GoyalAppellant
Versus
Smt. Aditi Goel D/o Sri Ashok SinghalRespondent

Present:

Mr. Piyush Garg, Advocate for the appellant.

Mr. Lalit Sharma, Advocate for the respondent.

The Relief sought by the present appeal is to set aside/quash the part of judgment and decree dated 5.3.2016 passed by Principal Judge Family Court, Dehradun in OS No. 350 of 2014, whereby application filed by the respondent under Section 25 of the Hindu Marriage Act seeking permanent alimony has been allowed and an exorbitant sum of Rs. 13 Lacs has been directed to be paid as one time permanent alimony.

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With

First Appeal No. 28 of 2016

Manu Goyal S/o Sri Anand Kumar Goyal

.....Appellant

Versus

Smt. Aditi Goel D/o Sri Ashok SinghalRespondent

Present:

Mr. Piyush Garg, Advocate for the appellant.

Mr. Lalit Sharma, Advocate for the respondent.

The Relief sought by the present appeal is to set aside/quash the that part of judgment and decree dated 5.3.2016 passed by Principal Judge Family Court, Dehradun in OS No. 350 of 2014, Manu Goel Vs. Aditi Goel, whereby application filed by the respondent under Section 26 of the Hindu Marriage Act seeking guardianship and custody of minor child has been allowed and custody of minor child has been given to the respondent.

With

First Appeal No. 39 of 2016

Smt. Aditi Goyal

.....Appellant

Versus

Mr. Manu Goyal

.....Respondent

Present:

Mr. Lalit Sharma, Advocate for the appellant.

Mr. Piyush Garg, Advocate for the respondent.

The relief being sought by means of this appeal is that the impugned judgment and decree dated 5.3.2016 passed by Principal Judge Family Court, Dehradun in OS No. 350 of 2014, Manu Goel Vs. Aditi Goel, may be set aside and the petition filed by the Respondent seeking divorce may be dismissed.

With

First Appeal No. 40 of 2016

Smt. Aditi Goyal

.....Appellant

Versus

Mr. Manu Goyal

.....Respondent

Present:

Mr. Lalit Sharma, Advocate for the appellant.

Mr. Piyush Garg, Advocate for the respondent.

The relief being sought by means of this appeal is that the impugned judgment and decree dated 5.3.2016 passed by Principal Judge Family Court, Dehradun in Guardian and Wards Act Case No. 19 of 2014, Manu Goel Vs. Aditi Goel, may be set aside and the petition filed by the Respondent seeking custody of child may be dismissed.

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JUDGMENT

Coram: Hon'ble Rajiv Sharma, J.

Hon'ble Sharad Kumar Sharma, J.

Dated: 18th July, 2017 Per Hon'ble Sharad Kumar Sharma, J.

This is a Bunch of six Appeals, in which, the parties are common and they are contesting almost for a common issue arising out of the matrimony and offshoots of the proceedings pertaining to the maintenance, guardianship, dissolution of marriage, permanent alimony etc. Since, the factual backdrop is common, this Court feels that this common judgment would be deciding the controversy and would be applicable in all the appeals, so far it relates to different controversies and for reliefs in different statutes.

Brief facts and the pleadings between the parties as involved in each appeal is being discussed separately.

This appeal has been preferred by the appellant questioning the validity of the order dated 5th March, 2016, passed by the Principal Judge, Family Court in Original Suit No. 350 of 2014, whereby his petition under Section 7 read with Section 25 of the Guardians and Wards Act and Section 6 read with Section 13 of the Hindu Minority and Guardianship Act as filed by Manu Goyal has been dismissed and the custody of the minor child has been given to the respondent wife.

Following facts are not in controversy that the marriage between the parties to the appeal was solemnized on 23rd November, 2008, at Panipat. Out of the wedlock, a son named Paras was born on 24th August, 2009. According to the appellant, at the time of the marriage, and, thereafter, all love and affection were showered upon the respondent wife, the appellant and his family members, but as per the appellant, the respondent wife was suffering from the vices of superiority complex

syndrome. On account of the aforesaid reason, she often used to misbehave and insult the appellant in the presence of relatives and friends and even used the abusive languages, which are not commonly used in the relationship of husband and wife, being not a language recognized in common parlance. When the respondent got the knowledge that she has conceived and is pregnant, she continued to live at Panipat just to ensure that the delivery of the child takes place at Panipat itself.

But, all of a sudden, for the reasons best known, she in April, 2009, during the pregnancy, when pregnancy was only of five months old, she left for Kanpur, i.e. her parental home and, the reason which was constituted for her movement to Kanpur was, that living at Panipat just to give birth to the child would not be possible for her. The atrocities of the respondent was so intense that she never even cared for the wellbeing of the small child who was hardly two months of age after his birth on 23rd November, 2008. Taking the risk of traveling during the pregnancy of five months was harmful for the mother as well as the child in the womb.

The respondent was so much career oriented that she even did not care for well being of the child and she ventured out to build her career. When Paras was hardly of four months of age, i.e. age when the maximum care is required by the child from his mother.

Another cause for concern as projected by the appellant was that the behavioral aspect of the respondent was not acceptable by the family, because she used to talk to unknown persons on mobile for hours together. On being requested to mend her ways, she used to threaten the appellant and his family member of dire consequences by committing suicide and roping them in false case. A threat of suicide will, in itself, amount to be a cruelty, because the person to whom such threats are extended always remains under a physiological pressure of anything happening untoward.

It was also case of the husband that apart from exercising atrocities against the husband had also declined to cohabit with the appellant and, hence, there was no consummation of marriage for a considerable long time which in itself, according to Section 13 of the Hindu Marriage Act is sufficient ground for dissolving the marriage because the foundation stone of marriage is its consummation. In the absence of attainment of matrimonial bliss continuance of relationship becomes difficult.

As per the husband case, under these circumstances, and for artificial controversies, the respondent, on 8th March, 2010, voluntarily on her own, deserted appellant the in-laws and left the home. While leaving the house, she parted with an information which was shocking to be heard by the appellant that appellant is not the father of the son Paras. No husband would be able to bear such a shock as has been given by the respondent wife which, according to the appellant, amounts to a cruelty.

When Paras was only 1-1/2 years of age and too tender where predominately he requires all care and affection of the mother because she would be the best person to take care of the minor at his or her tender age of life. But, by the misunderstanding and the cumulative action by way of several proceedings, which is being taken by the husband against the wife and vice versa, she was duressed to such an extent that she was forced to enter into a settlement, before the Panchayat the appellant

and the respondent decided to separate themselves from their matrimonial obligations, thus severing their relation.

On the basis of the settlement, a "written deed was executed on 12th March, 2015", whereby, it was decided that the child will remain in the custody of wife, however, she would be providing the visiting rights to the husband as and when they agree to settle the meeting and it was further decided that in view of the settlement dated 12th March, 2015, and dissolution of marriage was agreed and the appellant was to pay a sum of Rs. 14 lacs by way of permanent alimony as contemplated under Section 25 of the Hindu Marriage Act.

Consequently, the said settlement of 12th March, 2015, according to the appellant, was signed by the parties and relatives and it was candidly accepted by them whereby the inter se relationship between the appellant and the respondent stood settled in terms of the settlement dated 12th March, 2015.

Based on the settlement dated 12th March, 2015, both the parties jointly moved an application before the Family Court by invoking Section 13-B of the Hindu Marriage Act for settlement of the dispute and dissolving the marriage under the Act by mutual consent and, thus, the settlement dated 12th March, 2015, was placed before the Court as it was within the ambit of Section 13-B for mutual decree of divorce. At the time of institution of the proceedings under Section 13-B of the Act, according to the husband, on the date of first appearance when the proceedings were instituted, a sum of Rs.1,00,000/-, was paid to through cheque to the respondent on 27th April, 2011, and all jewelry and items of dowry which are said to have been mutually exchanged at the time of marriage, its inventory was prepared and was separately handed over.

According to the settlement dated 12th March, 2015, since it was agreement executed whereby the meeting rights of the appellant with the child was reserved, under the terms of the settlement, but fact remains that copy of settlement was not provided to the appellant.

The respondent wife, according to the husband, often created impediments to ensure that the meeting rights as settled by the settlement dated 12th March, 2015, amongst themselves, so that same may not mature amongst themselves.

Despite the aforesaid backdrop, the respondent wife deserted the appellant and have gone to unknown place without even informing the appellant.

Not only that there had chanced desertion but there was a step further taken by the respondent wife, who in collusion with her father had sold their accommodation in Kanpur vide sale deed dated 29th June, 2011, and no information whatsoever about execution of the sale deed or with regard to the whereabouts of the respondent was given to the appellant by any mode whatsoever. Although, at that time, the proceedings under Section 13-B was pending consideration.

The fact remains that compromise dated 12th March, 2015, was acted upon by the payment of the Cheque of Rs. 1,00,000/- by the appellant and its acceptance by the respondent and remaining part ought to be settled at the time of the final adjudication. The appellant moved an application before

the Court below praying for that appropriate direction may be issued to the respondent, herein, to permit the meeting rights with Paras which was part of the settlement dated 12th March, 2015.

The conduct and intention of the respondent was dubious because in accordance with the evidence on record and as per the pleadings raised by the appellant was to the effect that despite the fact that she has left Kanpur on 11th June, 2011, but still she continues to show herself to be resident of Kanpur.

In the proceedings before the Court below under Hindu Marriage Act, it has been normally witnessed that the Family Court makes an effort to settle the score by calling upon the parties to participate in the mediation proceedings as provided under law. Accordingly, the Family Court called upon the parties to the appeal to participate in the mediation in the Mediation Centre but the respondent had not appeared for mediation on 15th September, 29th September and of 3rd November failed.

On one hand, she was not trying to settle the dispute and on the other, she was not willing to participate in the proceedings of mutual settlement simply with an intention to harass the appellant and his family members so as to make her illegal demand being accepted by the parents of the appellant. The proceedings before the Mediation Centre was contested by the respondent despite the fact that the appellant was having the knowledge and whereabouts of the child Paras but no details of the whereabouts of the Child was given in the pleadings.

It is a case of the appellant that on the basis of the settlement dated 12th March, 2015, since he has already remitted the sum of Rs. 1,00,000/- before the Court below when the proceeding under Section 13-B was initiated which was accepted by respondent without objection, he on the next dated fixed, had appeared before the Court below on 12/12/2012, wherein he submitted an application that he is ready and willing to remit back the remaining Rs. 13,00,000/- by virtue of draft payable to HDFC Bank, Kanpur. He submitted an application by way of an objection to the application filed by the respondent but despite of it, according to the appellant, respondent has not accepted the amount and wanted to engage the appellant in litigation. Since, draft was already prepared and the case was fixed before the Court below for the next date, the husband's case is that he got the validity of draft of 13,00,000/- extended, but still wife did not appear and participate in the proceedings.

According to the appellant, the wife is working in Usha International Limited and, for the purpose of getting custody of the child, he has filed the proceedings under Section 7 read with Section 25 of the Guardians and Wards Act before the District Judge, Guargon which is pending.

The Family Court at Guargon in the proceedings under the Guardians and Wards Act had fixed number of dates but the respondent has not appeared and had not participated in the proceedings. On the one hand, she is not contesting the proceeding, while, according to the husband, on the other hand, she is extending threats that she will engage entire family into litigation by sending them in jail by lodging false criminal proceedings against them. Since the situation led to a stage where there was no possibility resilement of the dispute, marriage had become irretrievable and the appellant

had no option but to withdraw Section 13-B proceedings on 23rd April, 2013. The ordersheet to the proceedings shows that the Court tried to solicit her appearance but she avoided. Ever since March 2010, the respondent deserted the appellant and she did not permit the appellant to meet his son Paras.

As the child was with the respondent, and the appellant wanted to have his custody, being the father, on 9th October, 2012, he filed the proceedings before the Family Court Gurgaon, wherein he has prayed for the custody but the Court vide its order dated 28th March, 2012, according to the husband, husband was granted the meeting rights on every second and fourth Saturday between 12:00 to 6:00 p.m.. There were certain other conditions laid down that the father has to take and drop the child on every Saturday as has been fixed by the Court, it was left open to father take help of the Police, if need arises.

The order as rendered in a dispute between the parties before Punjab and Haryana High Court, dated 28th October, 2013, had granted the meeting right which was not followed despite the fact that the respondent had to file Writ Petition No. 7698 of 2013 which was dismissed on 13th December, 2013, but still she was so adamant that she did not comply with the order dated 28th April, 2013, as the meeting rights granted by the Court below was not followed which in itself amounts to cruelty. The spree of harassment at the hands of the respondent increased to such an extent that she lodged a criminal proceedings against the husband under Section 406 I.P.C., in which, ultimately, he was arrested and later released on bail.

Under the aforesaid circumstances, when the Section 13-B did not succeed and the respondent was making all the efforts to avoid the appellant to have an opportunity to meet child and to have the custody for the meeting rights of the child, the appellant had no option that since all these actions were resulting into cruelty was within the ambit of Section 13 of the Act, he initiated proceedings and under Section 13 of the Hindu Marriage Act before the District Judge, Panipat, seeking the decree of dissolution of marriage.

The respondent filed a Transfer Application before the Hon'ble Apex Court for transferring divorce proceedings from the Court of District Judge, Panipat, and, thus, both the proceedings under Section 13 of the Hindu Marriage Act as well as proceedings under Section 7 read with 25 of the Guardian and Wards Act read with Sections 6 and 13 of the Hindu Minority and Guardians and Wards Act was transferred to the Family Court, Dehradun. Where it was re-numbered as Suit No. 350 of 2014 and the proceedings under the Guardians and Wards Act registered as Original Suit No. 19 of 2014.

The basis of the proceedings under Section 13 which was filed was on the ground of desertion and cruelty and the proceedings under the Guardians and Wards Act was filed on the ground that looking to the status of the spouses the welfare of the child could be best safeguarded with the appellant, because he had the sources and resources available with himself by virtue of which the academic of the child could be maintained properly and future be safeguarded.

While, the case was pending consideration before the Family Court on its transfer from the Apex Court, there was another application filed being the Application under Section 26 of the Hindu Marriage Act by the respondent seeking the interim custody of the child. The application under Section 26 filed by the respondent wife in the proceedings under Section 13 of the Hindu Marriage Act, the appellant had filed his counter claim to the application under Section 26 and claimed to retain custody of the child on the grounds narrated in the application.

To harass, the husband, she also filed an application under Section 25 for the grant of permanent alimony and disposal of property under Section 27 of the Hindu Marriage Act, i.e. for the settlement of goods which was given to the husband and wife during the marriage period and seeking permanent alimony of all the Stridhan given to her at the time of marriage. All the applications under Sections 25, 26 and 27 filed by the respondent was opposed by the appellant by filing independent objections to the said applications.

The respondent had further filed further an application under Section 125 of the Cr.P.C. seeking maintenance which at the time of filing of the application under Sections 25, 26 and 27 of the Hindu Marriage Act was pending consideration.

The application under Section 24 was decided by the Family Court by its order dated 29th February, 2016. The attitude of the respondent, according to the appellant, was so acrimonious that she also instituted a case under Section 406 I.P.C., for which, the appellant had to file C-482 application before this Hon'ble Court, being C-482 No. 415 of 2014. The C-482 No. 415 of 2014 application was allowed by this Hon'ble High Court by holding that no action could be taken under Section 406 I.P.C. for the reason that all the articles which was said to have been exchanged during the married period, since has been returned, hence, the summoning order passed in Complaint Case under Section 406 I.P.C. was quashed by the Hon'ble High Court on 8th December, 2014.

The order of this Court dated 8th December, 2014 passed in C482 No. 415 of 2014 was challenged by the respondent before the Apex Court. The Apex Court too declined to interfere into the order passed by this Court and dismissed the SLP on 10th April, 2014.

From the aforesaid, it is quite clear that the respondent has left no stone unturned to harass the appellant and his family members by putting them in such a situation that they were engaged in multifarious litigations in various Courts, and according to the appellant, the sole intention behind it was to ensure that the principle proceedings under Section 13 may not be decided finally and to attain the objective of delaying the proceedings under Section 13, the records revealed that number of frivolous applications were filed by the respondent so that Section 13 may linger on.

On perusal of the ordersheet, it shows that the Family Court ceased with the proceedings under Section 13 had fixing number of dates for cross examination of the respondent, but she avoided to participate in the proceedings, at last, the Family Court decided to consolidate all the aforesaid cases by a common judgment dated 5th March, 2016, which is now being impugned in the instant appeals.

In the proceedings before the Court below, as would be revealed from the order dated 5th March, 2016, the Court while dealing with the issue of cruelty has held that the records and pleadings show that the respondent wife has been entering into unfettered steps to ensure the delay in the proceedings and to inflict cruelty for no justified reasons, as such, the learned Family Court decreed Section 13 filed by the appellant and dissolve the marriage between the parties by a decree of divorce. The said decree of divorce, as granted, has been challenged in First Appeal No. 39 of 2016 filed by Smt. Aditi Goel.

As already stated that the appellant had filed an application under Section 7 read with Section 25 of the Guardian and Wards Act and Section 6 read with Section 13 of the Hindu Minority and Guardianship and Wards Act. However, the Court below did not decide the said application filed by the appellant and held that the copy of the judgment passed in Original Suit No. 350 of 2014 may be placed on record in the Case No. 19 of 2014 under Section 7 read with Section 25 of the Guardians and Wards Act.

Proceedings under Section 13 and those the proceedings under Section 7 read with Section 25 are absolutely independent and under a different statute. The proceedings under the Guardians and Wards Act which was registered as Case No. 19 of 2014 was to be decided finally and independently by the Court below. Although for deciding the said controversy pertaining to the guardianship, the learned Family Court did frame an issue, being issue No 5. Issue No. 5 is quoted hereunder :-

"5. dkSu i{k vO;Ld iq= eko ikjl dh vfHkj{kk ikus dk vf/kdkjh gS\"

While deciding the Issue No. 5 by the judgment dated 5th March, 2016, no finding or much less plausible finding has been recorded by the Court on issue No. 5 and the same has been rejected clandestinely without assigning any reason and instead of granting the custody has confined the finding with regard to the meeting rights.

While deciding issue No. 5, which is the question under consideration in the instant appeal, the Court below erred in law by failing to appreciate that the appellant too happens to be the natural guardian and has got a right over his son Paras, who by the time of issue No. 5 was decided, that his son was over five years of age and thus, husband's contention was that he has a right of custody of the child.

The intention and purpose under law for Section 7 read with 25 of Guardians and Wards Act and that with Section 26 of the Hindu Marriage Act, there always happens to be a different and independent intention. Section 26 of Hindu Marriage Act only deals with the situation where the proceedings under the Act itself is pending and interim custody is to be granted. Whereas, Section 7 read with Section 25 of the Guardians and Wards Act deals with the permanent custody of a child and its veracity as to under a given set of circumstances to whom it has been granted.

While, deciding the issue No. 5, wherein, the Court was also ceased with the case under the Guardians and Wards Act, being Case No. 19 of 2014, has erred at law by not considering it as to be the independent case while deciding it alongwith Case No. 350 of 2014, under Section 13 of the

Hindu Marriage Act.

There is another anomaly which has been committed by the Family Court. This Court feels that as a matter of fact, issue which was formulated by Court below, as a matter of fact, was an issue pertaining to Section 26 of the Hindu Marriage Act and in relation to the counter claim filed by the appellant seeking custody of the child. Thus, it would be treated that as a matter of fact, Case No. 19 of 2014 was not at all adjudicated by independent application of mind.

The Family Court ought to have taken into consideration the impact of the withdrawal of the Petition under Section 13-B where the parties have agreed to the manner in which the matrimonial relationship and the relationship with regard to the custody of the child was to be governed. The Family Court erred by not considering the conduct of the respondent with regard to the breach of the terms of the settlement dated 12th March, 2015. For the custody of the child, no doubt, normally precedence laid down that the same has to be with the mother so far as the child is infant below five years of age but on crossing the barrier of the said age, it is always a prerogative of the Court to consider the circumstances in each case independently and to determine the welfare of the child and with regard to the fact as to whom the custody is to be given.

In the absence of there being any finding recorded in that regard in issue No. 5, this appeal which relates to finding on proceedings under Section 7 and 25 read with Section 6 and 13 of the Hindu Minority and Guardianship.

While, deciding the issue no finding has been recorded by the Family Court with regard to the welfare of the child as that is to play an important role rather than the wishes of the spouses contesting the proceedings.

The Family Court has gone waived by not correlating the claim and counter claim of the custody of the child, vis-à-vis the provisions of Guardians and Wards Act and Hindu Minority and Guardianship Act.

The case of the appellant is that the findings of the Family Court is perverse as no rationale has been attached by the Court below as to why the welfare of the child would be best by placing the child into custody of respondent. This finding is absolutely perverse because the Family Court has not made any effort to establish the same by considering the evidences adduced by the parties.

There has to be some sensitivity attached to the proceedings of this nature. Being a lady, she cannot be permitted to take advantage of the legislative protection granted to her. Once she has settled the controversy and has partly acted upon it by accepting the money and thereby declining to participate in the proceedings and, consequently, to the meeting rights, it would amount that the respondent was an opportunist in her temperament.

According to the pleadings, it also shows that right from the time when the child was 1-1/2 years of age, the respondent has left child at Dehradun in the custody of someone else and she herself was serving at Guargon.

Though, an absolute perverse finding has been recorded by the Court below, in relation to the custody of guardianship of the child, the same cannot be sustained.

But despite of the anomaly in the judgment, this Court while exercising its appellate power in wider interest of settling dispute finally. But looking to the settlement dated 12/03/2015, the guardianship would remain with mother, but the visiting rights as granted and agreed by parties will continue, as per settlement dated 12/03/2015, on every second and fourth Saturday between 12:00 noon to 6:00 p.m. This arrangement to continue till child attains majority. Thus the appeal is dismissed subject to observations made above.

In this appeal, the factual backdrop is almost identical to the factual backdrop as referred in Appeal No. 29 of 2016, hence, for the purpose of brevity, it is not repeated.

In the appeal, in question, a limited issue which was decided was the counter claim filed by the appellant to the application filed by the respondent to the application under Section 26 of the Hindu Marriage Act. Almost the findings of the issue would be covered by the findings recorded by the Court below in its judgment dated 5th March, 2016, on issue No. 5 which will be having an effect on the issue pertaining to Section 7 read with Section 25 of Guardians and Wards Act and Section 26 of the Hindu Marriage Act seeking an interim custody and the counter claim in relation thereto because if the counter claim is permitted by virtue of the provisions contained under Section 23-A of the Hindu Marriage At. Issue No. 5 framed by the Court reads as under:

"5. dkSu i{k vO;Ld iq= eko ikjl dh vfHkj{kk ikus dk vf/kdkjh gS\"

Thus, the findings in relation to the present appeal, too, would be governed by the findings as recorded by the Court below in its judgment on issue No. 5 and also by this judgment as rendered in Appeal No. 29 of 2016 which is the only issue framed by the Court below while deciding the cases after its consolidation under Order 4-A of the C.P.C. Hence, this appeal too would be governed by the judgment in Appeal No. 29 of 2016 and direction as given there. The Appeal is dismissed. The matter as issue No. 5 since settled by Appeal No. 29 of 2016, the issue of U/S 7 read with 25 of the Guardians and Wards Act and U/S 26 of Hindu Marriage Act is decided accordingly.

According to the cause title of this appeal which is an offshoot of the original Suit No. 350 of 2014, Manu Goel Vs. Aditi Goel in which the respondent has filed an application under Section 25 of the Hindu Marriage Act seeking a permanent alimony. For the said purpose, the learned Family Court had framed an issue for consideration of the alimony, being issue No. 3, which is quoted herein "3. D;k foi{kH ;kph ls ,d eq'r Hkj.kiks'k.k jkf'k izkIr djus dh vf/kdkfj.kh gS \"

In this issue, the responsibility which was given to the Family Court was to decide as to what would be the appropriate permanent alimony to be granted in an event if the decree of divorce between the parties was to be maintained. The learned Court below, while considering the issue about the permanent alimony, has recorded the finding that after making all the deductions to the monthly income accruing to the appellant, his income comes down to Rs.59,000/- p.m., whereas, on the other hand, the wife is

working in Uttarakhand University, where she is earning a sum of Rs.17,400/- p.m. Both the parties admit that there was a compromise entered into when the principal settlement dated 12th March, 2015, was entered on the basis of which proceeding under Section 13-B for mutual divorce though it was filed which was later on withdrawn. Acting on the said compromise, the respondent admittedly has accepted Rs.1 lac issued through cheque to her. Meaning thereby, she has taken a step forward by accepting partially permanent alimony of Rs. 1 lac out of total settled alimony of Rs.14 lacs and the findings have come forward in the proceedings that the remaining Rs.13 lacs was agreed to be paid by the appellant which he was willing to pay and he even got a draft prepared when he participated in the proceedings before the Family Court on a number of occasions. But the same could not be paid to the respondent because she was avoiding the proceedings. Thus, the learned Family Court, while deciding Issue No. 3 pertaining to alimony under Section 25 taking compromise paper 64-A as to be its basis had given the maintenance as to be Rs.14 lacs as one time payment and, thus, the same has been the basis for deciding and direction was issued to pay Rs. 13 lacs, the balance amount as alimony.

When the case was taken up, the Court felt that the settlement as arrived at on 12th March, 2015, for giving permanent alimony of Rs. 14 lacs was under the given set of circumstances which was prevailing at that time and the market inflation rate which was prevailing at that point of time. The Court intended to increase the offer of settlement of permanent alimony from 14 lacs to Rs.20 lacs.

The counsel for the appellant expressed that the payment of Rs.20 lacs would be on higher side, on being persuaded but counsel for both the parties in presence of husband expressed willingness to settled their score finally had agreed that if the amount of Rs.18 lacs is paid after deducting the Rs. 1 lac which has already been paid and the balance amount of Rs. 17 lacs is to be paid to the respondent within a stipulated time, the respondent would candidly accept, it as to be a settlement of permanent alimony for settling the controversy, in particular under Section 25. AS there is an acceptance by respondent No. 2, this Court feels that it would meet the ends of justice if the appellant remits a sum of Rs.17 lacs within a period of six months from today positively to the respondent by way of drafts, and not by any mode of differed payment.

Accordingly, this appeal is decided in terms of the following directions:-

1. The parities and their counsel in presence of husband agreed that the alimony as settled in the compromise dated 12th March, 2015, be increased from Rs.14 lacs to 18 lacs.
2. The amount of Rs. 18 lacs minus the payment of Rs. 1 lac already made in the proceedings under Section 13-B would be remitted by the appellant to the respondent by bank draft only.

3. The appellant prays for that the period for remittance may be fixed reasonably because of the financial constraints, he would be requiring some time to remit the amount. Thus, with the consent of the parties, a period of six months is granted to the appellant to either pay entire amount in installments within the said period or by way of one time but not beyond the period of six months from the date of the judgment.

Accordingly, this appeal is partly allowed in terms of the aforesaid directions. In the absence of non remittance of the amount within a period of six months, it would be open for the respondent to get the decree so far it relates to permanent alimony executed through the execution proceedings.

The issue in this appeal is identical to the issue in Appeal No. 30 of 2016, where in the Appeal No. 30 of 2016 and Appeal No. 29 of 2016, the counter claim in the proceedings under Section 26 has been decided while deciding issue No. 5. In the instant appeal, Section 26 itself is decided. Looking to the age of the child and looking to its welfare, this Appeal is decided in terms and conditions on which the Appeal No. 30 of 2016 has been decided by this judgment.

Consequently, since it has come on record while deciding Appeal No. 27 of 2016 that respondent is also an earning member and has got financial resources with her and the child since being minor, the best interest of the child would be subserved, if the custody of the child is given to the mother who ensures that she take all care and interest of the child including that of imparting the best possible education to the child to ensure a bright future.

It is an admitted case that the husband too happens to be the natural father and guardian of the son. He too has got emotion and love and affection for the child. Granting of custody to mother is, keeping in mind the interest of the child, the Court has to maintain the equity of emotions and showering of love and affection of the parents of the child. To meet the aforesaid objective, this Court feels that the respondent should not have any hesitation in permitting the meeting rights to be granted to the appellant to meet his child in terms of the settlement dated 12th March, 2015, which permitted the meeting on every second and fourth Saturday between 12:00 to 6:00 p.m. or for any other extended period as the parties unanimously agreed.

To protect the interest of the child, a direction is also issued to SSP of the District to provide protection to the parties and the child during the meeting hours as observed above.

This appeal is accordingly partly allowed subject to above observations which constitute to be part of decree in light of judgment of Appeal Nos. 29 of 2016 and 30 of 2016.

This appeal has been preferred by the wife Smt. Aditi Goel challenging the decree of divorce. This appeal has been filed belatedly. Initially but after the condonation of delay, it has been connected with the other appeals to be decided together. Looking to the attitude and the intention of the parties as observed in the above appeals, re-settlement of the marriage is out of picture, marriage between them has become irretrievable, the reason being that all efforts of mediations have failed. Furthermore, because the parties have agreed mutually to separate by the settlement of 12th March, 2015, it shows that their mental bend of mind has reached to a place where they want to settle their

disputes finally by giving divorce.

This Court feels that when settlement of 12th March, 2015, settled the meeting rights of the child and the alimony, they were temperamentally agreed to separate and since they have temperamentally agreed to separate as reflected from the compromise of 12th March, 2015, and also because of the fact that the wife has raised a claim for permanent custody of the child and since she has raised the claim for permanent alimony under Section 25 or any relief under Section 27, which this Court feels could be only granted when the parties agree to sever their relationship.

The Apex Court in the Case of B.P. Achala Anand Vs. S. Appi Reddy and another reported in AIR 2005 SC 986, has held in paragraph 29 as under :-

"29. The Hindu Marriage Act provides for divorce. Section 15 indicates when divorced persons may marry again. Section 25 enables the court to pass an order for providing alimony and maintenance in favour of the divorced wife. Section 27 enables the court to make provisions in the decree in respect of a property that may belong to the wife or to both. On the status of wife being terminated by a decree for divorce under the Hindu Marriage Act, the rights of the divorced wife seem to be cribbed, confined and cabined by the provisions of the Hindu Marriage Act and to the rights available under Sections 25 and 27 of the Act."

The Apex Court in the Case of Balkrishna Ramchandra Kadam Vs. Sangeeta Balkrishna Kadam reported in AIR 1997 SC 3562, has held in paragraph 10 and 13 as under :-

"10. On a plain reading of the Section it becomes obvious that the Matrimonial Court trying any proceedings under the Hindu Marriage Act, 1955, has the jurisdiction to make such provision in the decree as it deems just and proper with respect to any property presented "at or about the time of marriage" which may belong jointly to both the husband and the wife. This Section provides an alternate remedy to the wife so that she can recover the property which is covered by the Section, by including it in the decree in the matrimonial proceeding, without, having to take recourse to the filing of a separate Civil Suit and avoid further litigation. In the instant case, we find that the wife had laid claim to certain items of jewellery and in her deposition, she had mentioned the items of jewellery which she had received "at or about the time of her marriage" and, in particular, had mentioned the items of jewellery which were given to her by her father at the time of the marriage.

13. In our opinion, the courts have not gone into the question in its correct perspective. The trial court proceeded to negative the claim of the respondent-wife by holding that the court had no jurisdiction to deal with the property rights of the parties and gave no opportunity to the parties to lead evidence in support of their respective claims. The finding of the trial court clearly overlooked the provisions of Section 27 of the Hindu Marriage Act which unmistakably vests the jurisdiction in the court to pass an order, at the time of passing a decree in a matrimonial cause, in

respect of the property presented, at or about the time of marriage, which may belong jointly to the husband and the wife. The learned Single Judge also fell in complete error while concurring with the view of the trial court to say that there was no evidence on the record to show that the property claimed by the wife was presented to her at the time of her marriage. The learned Single Judge failed to take notice of the deposition of the respondent in that behalf. Moreover, the property, as contemplated by Section 27 is not the property which is given to the wife at the time of marriage only. It includes the property given to the parties before or after marriage also, so long as it is relatable to the marriage. The expression "at or about the time of marriage" has to be properly construed to include such property which is given at the time of marriage as also the property given before or after marriage to the parties to become their "joint property", implying thereby that the property can be traced to have connection with the marriage. All such property is covered by Section 27 of the Act."

This Court feels that in the light of the observations made in the other connected appeals settling the custody of the child, the alimony and the meeting rights of the child, there survives nothing to be decided in this appeal where the wife could give challenge to the decree of divorce granted under Section 13 of the Hindu Marriage Act.

In that eventuality, the issue of divorce is no more in debate and thus, this appeal, fails and is accordingly dismissed subject to the observations made limiting the relationship of the parties in the light of the observations made in the other appeals.

Accordingly, the Appeal is dismissed.

This appeal is filed by the wife Aditi Goel. She questions the decree dated 5th March, 2016, so far it relates to the passing of the judgment in Guardians and Wards Case No. 19 of 2014, whereby, the visitation rights have been given to the respondent to take the child on every second and fourth Saturday between 12:00 to 6:00 p.m. This Court feels that in view of the findings recorded in the other appeals, i.e. Appeal No. 29 of 2016, Appeal No. 30 of 2016 and Appeal No. 28 of 2016, in relation to the proceedings under Section 7 read with Section 25 of the Guardians and Wards Act and Hindu Minority and Adoption Act and Section 26 of the Hindu Marriage Act, when the interest of the wife vis-à-vis the interest of the child is protected by granting permanent custody to the mother for keeping the child and upbringing him, this Court has to maintain the equities of affection between the spouses towards their child. Permitting the visiting rights for a limited time period, twice a month, is absolutely appropriate as because at least the father and particularly under the Hindu system of living too, father has a right to express his concern and affection towards the child and thus, this Court feels that nothing survives in this Appeal.

Appeal is, thus, dismissed subject to decisions in connected Appeal Nos. 29 of 2016, 30 of 2016 and 28 of 2016.

During the course of argument of these appeals, the learned counsel has placed reliance on the reports of Law Commission of India, i.e. Report No. 257 of May, 2015, which dealt with the Reforms in Guardianship and Custody Laws in India. He also placed reliance on the Child Access and Custody Guidelines alongwith Parenting Plan by Child Rights Foundation which is an NGO.

On scrutiny of these Reports where these reports have been forwarded to the various High Courts to be treated as to be the guidelines, they do not become the Statute but still they can be taken as to be the guiding force and since in its letter and spirit, after taking into consideration of the provision of Guardians and Wards Act, Hindu Minority and Guardianship Act, Hindu Marriage Act and other such laws in relation to other castes almost deal with the same principle where the child interest is paramount. This Court feels that the spirit as contemplated in the aforesaid reports of the Law Commission has already been dealt by this Court in the judgment. Hence specific reliance is not required to be placed, since these reports are not statutory in nature.

In the light of the above observations and the judgments passed in specific appeals, these bunch of appeals are decided accordingly.

Thus the appeals are decided with the following directions:-

1. Appeal No. 29 of 2016.

The custody of the child and its guardianship under Section 7 read with Section 25 of the Guardians and Wards Act is granted to the respondent (mother) subject to the conditions of visiting rights as settled in the compromise dated 12.03.2015. The appellant would be entitled to meet the child on every 2nd and 4th Saturday between 12:00 noon to 6:00 pm. whereby the father will take the child from the custody of the mother and will drop him back after the closure of the visiting rights. Subject to the above observations, the appeal is dismissed.

2. Appeal No. 30 of 2016.

In view of the fact that the appeal No. 29 of 2016 under Section 7 read with Section 25 of the Guardians and Wards Act has already protected the visiting rights and since the guardianship and the issue of custody has already been decided in appeal No. 29 of 2016, the findings on issue no. 26 becomes irrelevant. Hence, appeal is dismissed.

3. Appeal No. 27 of 2016.

It relates to the alimony under Section 25. Since in the settlement dated 12.03.2015 the parties agreed for a permanent alimony of Rs. 14.00 lakh out of which Rs. 1.00 lakh was received by the wife in the proceedings under Section 13(b) and the remaining Rs. 13.00 lakh was consistently tried to be paid by the husband but the same was not received. But since today, the counsel for the parties have agreed to settle the score of Section 24 for permanent alimony subject to the enhancement of the said amount from Rs. 14.00 lakh to Rs. 18.00 lakh. This Court enhances the amount from Rs. 14.00 lakh to Rs. 18.00 lakh and directs the husband to remit the balance amount of Rs. 17.00 lakh

to the respondent within the time provided in the judgment. Hence the appeal is accordingly partly allowed with consent of party alimony is enhanced.

4. Appeal No. 28 of 2016.

This appeal would be dismissed in the light of findings recorded in the judgment rendered in relations to the Appeal No. 29 of 2016 and Appeal no. 30 of 2016 vis-à-vis the guardianship and custody of the minor child under Section 7 read with Section 25 of the Guardians and Wards Act and Section 26 of the Hindu Marriage Act.

5. Appeal No. 39 of 2016.

It is an appeal where wife has challenged the decree of divorce. Since the wife is agreed for an alimony under Section 25 in appeal No. 27 of 2016 and the same has been enhanced from Rs. 14.00 lakh which was settled in the agreement dated 15.03.2015 and the same has been enhanced to Rs. 18.00 lakh. The acceptance of the permanent alimony would amount to the dissolution as settled by agreement dated 15.03.2015 hence this appeal challenging the decree is dismissed.

6. Appeal No. 40 of 2016.

This appeal will stand dismissed in terms of judgment rendered in appeal No. 29 of 2016 and appeal No. 30 of 2016 pertaining to grant of visitation rights and custody of the minor child.

Subject to the above observations, all the six appeals are decided accordingly.

(Sharad Kumar Sharma, J.) (Rajiv Sharma, J.) 18.07.2017 18.07.2017 Shiv